

26VECV02006 26VECV02006

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Tentative Ruling

Martin v. Dragan Construction, Case
no. 26VECV02006

Hearing date July 29, 2026

Defendants'

Anti-SLAPP Motion to Strike - UNOPPOSED

Plaintiff

Martin, in pro per, sues defendants Dragan Construction, Inc., Mijailovic and Det. Lee for fraud, harassment, false imprisonment and IIED. Plaintiff alleges Mijailovic harassed him by enquiring about his contractor status. The court sustained defendant Det. Lee's demurrer without leave to amend. 6/9/26 Min. Order. Remaining defendants specially move to strike the complaint under Code Civ. Proc. §425.16 ("anti-SLAPP"). The motion is unopposed.

Defendants

request judicial notice of: (1) plaintiff's 4/22/26 supplemental declaration, and (2) case information sheet in People of the State of California vs. Martin, Michael Khalil, LASC Case No. 26VWCM01989-01. GRANTED pursuant to Evid. Code §452(d).

In

ruling on an anti-SLAPP motion, a trial court uses a "summary-judgment-like procedure at any early stage of the litigation." Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 192. This two-step process requires

defendant to show the acts of which plaintiff complains were taken “in furtherance of the [defendant]’s right of petition or free speech.” Code Civ. Proc. §425.16(b)(1). If defendant carries that burden, the burden shifts to plaintiff to demonstrate a probability of prevailing on the claim. Code Civ. Proc. §425.16(b)(3). In making these determinations, the trial court considers “the pleadings and supporting and opposing affidavits stating the facts upon which the liability or defense is based.” Code Civ. Proc. §425.16(b)(2); *Equilon Enterprises v. Consumer Cause* (2002) 29 Cal.4th 53, 67. A court does not weigh credibility or the comparative strength of the evidence – the court considers defendant’s evidence to determine if it defeats a plaintiff’s showing as a matter of law. *Soukup v. Law Office of Herbert Hafif* (2006) 39 Cal.4th 260, 291.

The complaint alleges that in January 2024 defendant Mijailovic hired plaintiff to perform work on a swimming pool on a Malibu project. Compl., paras. 9, 10. During the project, plaintiff’s contractor’s license allegedly lapsed, but it was later reactivated. Id., paras. 10, 11. Mijailovic allegedly continued to hire plaintiff over the next two years. Id., paras. 10, 12. During this time, an unknown individual holding himself out to be a state auditor is alleged to have repeatedly contacted plaintiff who contacted Mijailovic, asking the identity of the unidentified individual. Id., para. 12.

Mijailovic filed a police report for “hate speech” against plaintiff, investigated by Det. Lee. Compl., paras. 15-16. Per plaintiff’s declaration, Det. Lee told plaintiff he committed a felony and was facing jail time. RJN 1. On 5/19/26 the LA District Attorney charged plaintiff with violation of Pen. Code §653m(b) – intent to annoy or harass with repeated calls/contacts. RJN 2.

The anti-SLAPP statute protects conduct in furtherance of a person’s right of petition or free speech, including written or oral statements made before any official proceeding authorized by law. Code Civ. Proc. §425.16(b)(1), (e)(1). “[H]elping to bring about a criminal prosecution is protected activity under the statute.” *Lugo v. Pixior, LLC* (2024) 101 Cal.App.5th 511, 514. The gravamen of plaintiff’s claims against defendants is that they made a police report against him and cooperated with Det. Lee’s investigation. See Compl., paras. 12-15. Plaintiff’s claims arise from a protected activity. The burden shifts to plaintiff to demonstrate a probability of prevailing on the claims. As

plaintiff has not opposed this motion, plaintiff cannot meet this burden. GRANTED;
complaint is dismissed with prejudice.